Quarterly report: Q1 2026

Australia's merger regime, 1 January 2026 – 31 March 2026

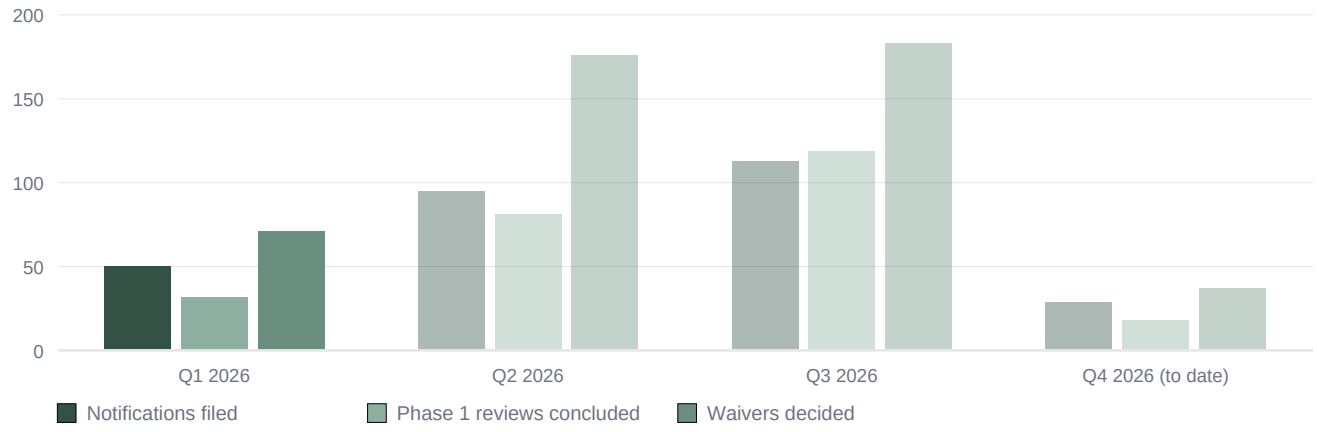
NOTIFICATIONS FILED	WAIVERS DECIDED	PHASE 1 MEDIAN	WAIVER MEDIAN
50	**71**	**17** business days	**11** business days

THE QUARTER IN BRIEF

- 50 notifications filed, and 71 waiver applications decided.
- Phase 1 reviews concluded in a median 17 business days; waivers in 11.
- Notifications filed had spent an estimated median 9 business days in pre-notification.
- 92% of waivers were granted and 94% of phase 1 reviews ended in approval.
- 2 matters referred to phase 2.

Volume by quarter

Waivers reach the ACCC's register only once decided, so they are counted when decided



Waivers

CLEARANCE RATE

92%

65 of 71 approved

Average when granted	**11 business days**
Average when refused	**10.7 business days**
Refused	**6**

6 of 6 refused waivers have since been re-filed as a notification.

Notifications – phase 1

CLEARANCE RATE

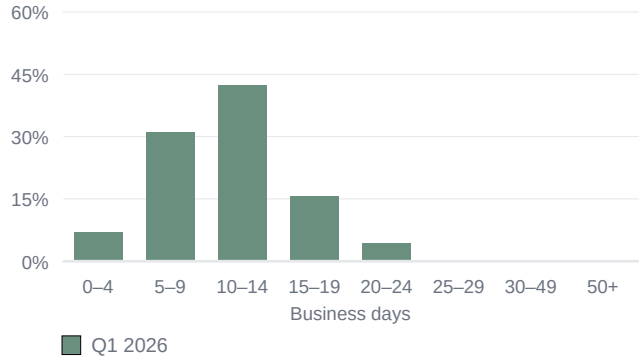
94%

30 of 32 approved

Average when approved	**17.9 business days**
Average when referred	**44.5 business days**
Referred to phase 2	**2**

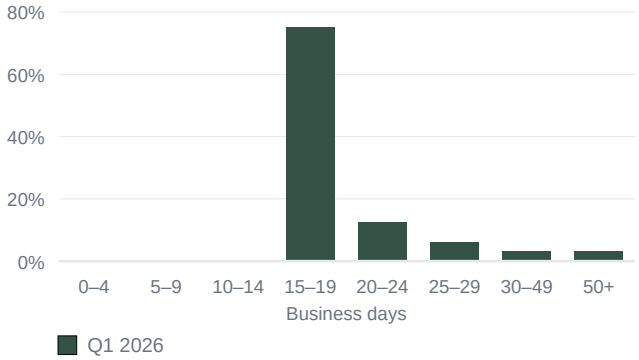
Waiver timing

Share of decisions by business days taken – median 11 business days, 90% within 17 business days



Phase 1 timing

Share of decisions by business days taken – median 17 business days, 90% within 26 business days



Pre-notification

Estimated time the 51 notifications filed this quarter spent with the ACCC before filing, as a share of those notifications

MEDIAN

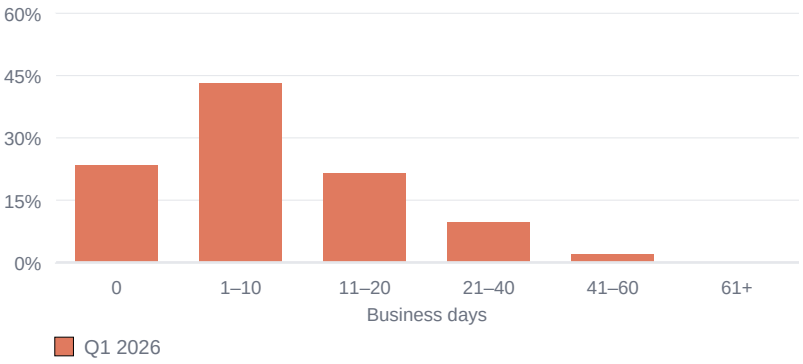
9 business days

AVERAGE

9.8 business days

90% WITHIN

22 business days



Pre-notification never appears on the register. It is estimated from the order the ACCC issued case numbers in, so the figures for the latest filings can still move as later case numbers appear.

Where the deals were

Notifications filed and waivers decided, by ANZSIC division

Professional, Scientific and Technical Services	37
Manufacturing	26
Information Media and Telecommunications	23
Financial and Insurance Services	21
Wholesale Trade	13

50% involved an overseas-registered acquirer or target (61 of 121). A party counts when the register gives it a foreign registration number, or no ABN or ACN and an overseas legal form (Inc, GmbH, S.p.A.…); unclear cases are left out, so this is a floor.

Beyond phase 1

Phase 2 referrals and outcomes, public benefit applications, and Tribunal and court reviews

21 Jan 2026	**Referred to phase 2**	Ampol – EG Australia
29 Jan 2026	**Referred to phase 2**	Coles – supermarket and liquor site in Kalgoorlie, WA

Notes

Decisions count in the quarter they were made; notifications in the quarter they were filed. Waivers reach the ACCC's register only once decided, so they are counted when decided. Phase 1 timing runs from notification to the phase 1 determination, or to the referral for a matter sent to phase 2. All durations are business days, as the statutory clocks count them.